

4	Atalla v. Kaiser Foundation Health Plan, Inc. 2024-01377905 Motion to Compel Arbitration	Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D.'s unopposed petition to compel arbitration is GRANTED. Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D. seek an order compelling Plaintiff to arbitrate her claims against Defendants and move to stay the action pending completion of arbitration and determination of this motion. Defendants contend Plaintiff's claims are subject to arbitration pursuant to a Group Agreement and Evidence of Coverage between Kaiser Foundation Health Plan, Inc. and the Board of the California Public Employees Retirement System through which Plaintiff was enrolled as a health plan member and received the medical care at issue. The Federal Arbitration Act (FAA) authorizes enforcement of arbitration causes unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) Similarly, under the California Arbitration Act (CAA), a party to an arbitration may move to compel arbitration if the other contractual party refuses to arbitrate. (Code Civ. Proc., § 1281.2.) "[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable." (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 (Rosenthal)). "[T]he petitioner bears the burden of proving its existence by a preponderance of the evidence" and the party opposing the petition bears the burden of proving by a preponderance of the evidence of any fact necessary to any defenses raised. (<i>Ibid.</i>) Defendants seek to compel arbitration both under the CAA as well as the FAA as they contend the arbitration agreement affects interstate commerce. Kaiser Foundation Health Plan, Inc. (Health Plan) entered into a Group Agreement and Evidence of Coverage (Agreement/EOC) with the Board of the California Public Employees Retirement System (CalPERS) effective 1/1/21 through which Health Plan offered to arrange certain medical and hospital services for individuals eligible for CalPERS health benefits. (Adkins Decl., ¶ 2, Ex. A; Kohls Decl., ¶ 2.) Health Plan contracts with Southern California Permanente Medical Group (SCPMG) to provide medical services to Health Plan members. (Everett Decl., ¶ 1.) Veronica Atalla (Atalla), Plaintiff's mother, initially enrolled as a Health Plan member
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	under the Agreement/EOC in 2015. (Adkins Decl., ¶ 4, Ex. C.) Atalla signed a Newborn enrollment form to enroll Plaintiff as a Health Plan member on 10/7/17. (Adkins Decl., ¶ 5, Ex. D.) Plaintiff was therefore enrolled as a CalPERS basic plan member under the Agreement/EOC effective 11/1/17 and remained enrolled through 1/1/22. (Adkins Decl., ¶ 4, Ex. C.) The section entitled "Binding Arbitration" in the 2021 Agreement/EOC provides, in part: For all claims subject to this "Binding Arbitration" section, both Claimants and Respondents give up the right to a jury or court trial and accept the use of binding arbitration. . . . Scope of arbitration Any dispute shall be submitted to binding arbitration if all of the following requirements are met: • The claim arises from or is related to an alleged violation of any duty incident to or arising out of or relating to this EOC or a Member Party's relationship to Kaiser Foundation Health Plan, Inc. ("Health Plan"), including any claim for medical or hospital malpractice (a claim that medical services or items were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), for premises liability, or relating to the coverage for, or delivery of, services or items, irrespective of the legal theories upon which the claim is asserted • The claim is asserted by one or more Member Parties against one or more Kaiser Permanente Parties or by one or more Kaiser Permanente Parties against one or more Member Parties • Governing law does not prevent the use of binding arbitration to resolve the claim . . . As referred to in this "Binding Arbitration" section, "Member Parties" include: • A Member • A Member's heir, relative, or personal representative • Any person claiming that a duty to him or her arises from a Member's relationship to one or more Kaiser Permanente Parties "Kaiser Permanente Parties" include: • Kaiser Foundation Health Plan, Inc. • Kaiser Foundation Hospitals . . . • Southern California Permanente Medical Group . . . • Any Southern California Permanente Medical Group or The Permanente Medical Group physician. "Claimant" refers to a Member Party or a Kaiser Permanente Party who asserts a claim as described above. "Respondent: refers to a Member Party or a Kaiser Permanente Party against whom a claim is asserted. (Adkins Decl., ¶ 2, Ex. A, pp. 76-77.) Defendants contend Lau, Tran, and Oh are medical doctors and partners of SCPMG, providing medical services to Health Plan members. The Agreement/EOC further states: EOC Binding on Members By electing coverage or accepting benefits under this EOC, all Members legally capable of contracting, and the legal representatives of all Members incapable of contracting,
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	agree to all provisions of this EOC. (Adkins Decl., ¶ 2, Ex. A, p. 85.) Health Plan and CalPERS entered into agreements containing a similar provision for binding arbitration every year since the 1970s. (Kohls Decl., ¶ 4.) The Newborn information enrollment form signed by Plaintiff on 10/7/17 provides: Kaiser Foundation Health Plan Arbitration Agreement I understand that (except for Small Claims Court cases, claims subject to a Medicare appeals procedure, and, if I am enrolled in coverage that is subject to the ERISA claims procedure regulation, or any claims that cannot be subject to binding arbitration under governing law) any dispute between myself, my heirs, relatives, or other associated parties on the one hand and Kaiser Foundation Health Plan, Inc. (KFHP), any contracted health care providers, administrators, or other associated parties on the other hand, for alleged violation of any duty arising out of or related to membership in KFHP, including any claim for medical or hospital malpractice (a claim that medical services were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), for premises liability, or relating to the coverage for, or delivery of, services or items, irrespective of legal theory, must be decided by binding arbitration under California law and not by lawsuit or resort to court process, except as applicable law provides for judicial review of arbitration proceedings. I agree to give up our right to a jury trial and accept the use of binding arbitration. I understand that the full arbitration provision is contained in the Evidence of Coverage. (Adkins Decl., ¶ 5, Ex. D.) Whether an agreement to arbitrate exists When a party petitions the court to compel arbitration, it “must allege the existence of an agreement to arbitrate the its enforceability are proven by affidavits or declarations.” (<i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218 [citation omitted].) The relevant provisions of the arbitration agreement must be set forth verbatim in the petition to compel or a copy of the agreement must be attached to the petition and incorporated by reference. (<i>Ibid.</i> [citing Cal. Rules of Court, rule 371 [now rule 3.1330].) “If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.”(<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165, [disagreed with by <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, on a different point.]) Here, Defendants attached a copy of the 2021 Agreement/ EOC as Exhibit A to the Adkins Declaration. The Agreement/EOC provides: “For all claims
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	subject to this 'Binding Arbitration' section, both Claimants and Respondents give up the right to a jury or court trial and accept the use of binding arbitration. . . ." Agreements containing a similar arbitration provision were entered into in 2015 and 2017, when Atalla and Plaintiff enrolled, respectively. (Adkins Decl., ¶¶ 4-5, Exs. C, D; Kohls Decl., ¶ 4.) The Agreement/EOC states: "By electing coverage or accepting benefits under this EOC, all Members legally capable of contracting, and the legal representatives of all Members incapable of contracting, agree to all provisions of this EOC." (Adkins Decl., ¶ 2, Ex. A, p. 85.) As stated above, Atalla enrolled as a Health Plan member under the Agreement/EOC in 2015 and enrolled Plaintiff in 2017. (Adkins Decl., ¶¶ 4-5, Exs. C, D.) Additionally, Atalla signed a Newborn information enrollment form on 10/7/17 which provided, in part: "I understand that . . . any dispute between myself, my heirs, relatives, or other associated parties on the one hand and Kaiser Foundation Health Plan, Inc. (KFHP), any contracted health care providers, administrators, or other associated parties on the other hand, for alleged violation of any duty arising out of or related to membership in KFHP, including any claim for medical or hospital malpractice (a claim that medical services were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered) . . . must be decided by binding arbitration under California law I agree to give up our right to a jury trial and accept the use of binding arbitration. I understand that the full arbitration provision is contained in the Evidence of Coverage." (Adkins Decl., ¶ 5, Ex. D.) "Minors are bound by a parent's agreement to arbitrate medical malpractice claims filed against a healthcare provider." (<i>County of Contra Costa v. Kaiser Foundation Health Plan, Inc.</i> (1996) 47 Cal.App.4th 237, 242-243 [citations omitted].) Given the above and no opposition from Plaintiff disputing the existence of an arbitration agreement, the Court finds an agreement to arbitrate exists. Whether the Agreement/EOC covers Plaintiff's claims The Agreement/EOC provides that disputes will be arbitrated if "[t]he claim arises from or is related to an alleged violation of any duty incident to or arising out of or relating to this EOC or a Member Party's relationship to Kaiser Foundation Health Plan, Inc. ('Health Plan'), including any claim for medical or hospital malpractice (a claim that medical services or items were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered). . . ." and "[t]he claim is asserted by one or more Member Parties against one or more Kaiser
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		Permanente Parties,” which includes any SCPMG physician. (Adkins Decl., ¶ 2, Ex. A, p. 77.) Similarly, the provision in the Newborn information enrollment form provides that “any claim for medical or hospital malpractice” must be decided by binding arbitration. (Adkins Decl., ¶ 5, Ex. D.) This language covers Plaintiff’s claims which relate to the medical care she received. The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (Howard v. Goldbloom (2018) 30 Cal.App.5th 659, 663.) The Court finds the Agreement/EOC covers Plaintiff’s claims. Enforceability of the Agreement/EOC As stated above, once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (Rosenthal, supra, 14 Cal.4th at p. 413.) Plaintiff has not opposed the motion and has therefore not raised any defenses as to enforceability. Accordingly, the Court GRANTS Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D.’s petition to compel arbitration. The Court STAYS the action against Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D. pending the completion of arbitration. The Court SETS an ADR Review Hearing re: Status of Arbitration for 3/15/27 at 8:30 a.m. in Department C15.
5	Jacobson v. Davidson 2026-01543879 Motion to Compel Arbitration	The Motion to Compel Arbitration by Defendants Keith Davidson, Stewart Albertson, and Albertson & Davidson, LLP is GRANTED. This action arises from the attorney Defendants’ representation of Plaintiff in underlying trust/inheritance proceedings. (Complaint, ¶¶ 1-8.) Plaintiff alleges Defendants failed to provide the funds Plaintiff is entitled to because Defendants (1) applied improper/inconsistent fees and failed to account for his funds, and (2) Defendants claim they issued checks which Plaintiff never received or cashed. Plaintiff seeks damages in excess of \$615,000 and an accounting of his funds. <u>Legal Standard:</u> “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the